

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ANTHONY RODRIGUEZ,

Plaintiff,

-against-

TARGET CORPORATION (D/B/A TARGET STORES),  
XYZ CORPORATIONS 1-5, and JOHN DOES 1-5, said  
names being fictitious except the same are identified as  
employers or contractors that provided employees to the said  
defendant TARGET CORPORATION dba TARGET STORES  
and to the herein described premises, CITY OF NEW YORK,  
ARIEL GONZALEZ, and JOHN and JANE DOES "1-10"  
Individually and officially in their capacities as police  
officers,

Defendants.  
-----X

**To the above-named Defendant(s):**

**You are hereby summoned** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
November 6, 2023

  
\_\_\_\_\_  
John K. Kouroupas  
GREENBERG & STEIN, P.C.  
Attorney for Plaintiff  
ANTHONY RODRIGUEZ  
420 Lexington Avenue, Suite 2450  
New York, New York 10170  
(212) 681-2535  
Our File No. 7426

Index No.:  
Date Purchased:  
**SUMMONS**

Plaintiff designates Bronx  
County as the place of trial.

The basis of venue is:  
Where the incident  
occurred.

Incident occurred at:  
700 Exterior Street, County  
of Bronx, State of NY

TO:

TARGET CORPORATION  
(D/B/A TARGET STORES)  
1000 Nicollet Mall,  
Minneapolis, MN, 55402  
**AND VIA SECRETARY OF STATE**

City of New York  
100 Church Street  
New York, NY 10007

ARIEL GONZALEZ  
Shield #21041  
44<sup>th</sup> Precinct  
2 E 169th Street  
Bronx, NY 10452

**PLEASE FORWARD THIS DOCUMENT TO YOUR INSURANCE CARRIER**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
ANTHONY RODRIGUEZ,

Plaintiff,

-against-

TARGET CORPORATION (D/B/A TARGET STORES),  
 XYZ CORPORATIONS 1-5 and JOHN DOES 1-5, said names  
 being fictitious except the same are identified as employers or  
 contractors that provided employees to the said defendant  
 TARGET CORPORATION dba TARGET STORES and to the  
 herein described premises, CITY OF NEW YORK, ARIEL  
 GONZALEZ, and JOHN and JANE DOES "1-10" Individually  
 and officially in their capacities as police officers,

Defendants.  
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**VERIFIED  
COMPLAINT**

Plaintiff, **ANTHONY RODRIGUEZ**, by and through the undersigned attorneys,  
 GREENBERG & STEIN, P.C., as and for their complaint against the Defendants, Individually  
 and officially in their capacities as police officers, alleges and states as follows:

1. That at all times herein mentioned, the Plaintiff was, and still is a resident of the County of Queens, State of New York.
2. The cause of action alleged herein arose in the County of Bronx, State of New York.
3. This action falls within one or more of the exemptions set forth in CPLR 1602 on the grounds of *respondeat superior*; that it alleges breach of a non-delegable duty; that one or more of the causes of action alleged herein require proof of intent; that one or more causes of action herein allege intentional or knowing conduct; that one or more causes of action

herein allege reckless disregard and upon any other grounds.

4. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** was a domestic corporation duly organized and existing under the laws of the State of New York.

5. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** was a foreign corporation doing business in the State of New York.

6. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** was a business entity doing business in the State of New York.

7. That on or about November 18, 2022, and at all times herein mentioned, defendant **ARIEL GONZALEZ** was, and still is a resident of the County of Bronx, State of New York.

8. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** operated a retail store located at 700 Exterior Street, Bronx, New York.

9. Upon information and belief, at the time herein mentioned, the defendant leased and/or rented the said premises.

10. Upon information and belief, at the time herein mentioned, the defendant managed the said premises.

11. Upon information and belief, at the time herein mentioned, the defendant maintained the said premises.



12. Upon information and belief, at the time herein mentioned, the defendant controlled the said premises.

13. Upon information and belief, at the time herein mentioned, the defendant operated the premises.

14. Upon information and belief, at the time herein mentioned, the defendant managed the premises as a retail store open to the public.

15. Upon information and belief, at the time herein mentioned, the defendant maintained the premises as a retail store open to the public.

16. Upon information and belief, at the time herein mentioned, the defendant controlled the premises as a as a retail store open to the public.

17. Upon information and belief, at the time herein mentioned, the defendant operated the premises as a retail store open to the public.

18. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)**, employed one or more employees at the said premises.

19. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** employed one or more security guards at the said premises, including person identified as defendants **JOHN DOES 1-5**.

20. That on or about November 18, 2022, and at all times herein mentioned, defendant **TARGET CORPORATION (D/B/A TARGET STORES)** entered into contracts with and/or retained the services of one or more contractors, identified as **XYZ CORPORATIONS 1-5, and JOHN DOES 1-5**.

21. That on about November 18, 2022, **JOHN DOES 1-5**, were employed by defendants **XYZ CORPORATIONS 1-5**, and were employed at the said premises.

22. That on or about November 18, 2022, and at all times herein mentioned, each defendant was related to each and every other defendant in such a way that each was and is vicariously liable for the acts of the other, as well as all acts described herein.

23. That at all times herein mentioned, all defendants were acting within the scope of their respective employments(s).

24. On or about November 18, 2022, plaintiff was lawfully on the premises.

25. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officer, stopped the plaintiff.

26. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officer accused the plaintiff of stealing merchandise.

27. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officer, committed an assault and battery on Plaintiff.

28. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officer, prevented the plaintiff from leaving the premises.

29. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officer, took the plaintiff into an enclosed office on the premises.

30. On or about November 18, 2022, upon the said premises, plaintiff was detained, arrested and not free to leave.

31. On or about November 18, 2022, upon the said premises, plaintiff was prevented by defendant's employees from leaving the store.

32. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officers, grasped the plaintiff by the arm and caused him injury.

33. On or about November 18, 2022, upon the said premises, defendants **JOHN DOES 1-5**, employees and/or security officers, made contact with the person of the plaintiff and caused him injury.

34. That at all times herein mentioned, the plaintiff was in immediate apprehension and in fear for his physical well-being.

35. The physical contact with the plaintiff as aforesaid was excessive, unnecessary, unreasonable and greater than that which was reasonable and prudent under the circumstances.

36. As a result of the foregoing, plaintiff was injured and deprived of liberty, without just cause, all to his damage.

37. By reason of the foregoing acts by the defendants, Plaintiff was severely injured and suffers, and upon information and belief, will continue to suffer, continuous pain and anguish.

38. By reason of the foregoing acts by the defendants, Plaintiff was caused severe and intense emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

39. The conduct of the defendants as detailed herein is of a nature such that the plaintiff is entitled to punitive and exemplary damages in an amount to be determined at the trial of this action, which amount exceeds the jurisdiction of all lower court.

40. At all relevant times herein, Defendant, City of New York (“City”), is a municipal corporation duly organized and existing under the laws of the State of New York.

41. At all relevant times herein, the New York Police Department (“NYPD”) is a wholly owned subsidiary, which is further wholly operated, managed, maintained, and controlled by Defendant City.

42. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention, and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, and other supervisory officers or officials, as well as the individually named Defendants herein.

43. At all relevant times herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

44. At all relevant times herein, Defendants, ARIEL GONZALEZ, JOHN and JANE DOES “1-10”, were traffic agents, police officers, detectives, supervisors, policymakers or officials employed by the NYPD and City of New York. At this time, Plaintiff did not know the true names or tax registry numbers of Defendants, ARIEL GONZALEZ, JOHN AND JANE DOES “1-10” as such knowledge is within the exclusive possession of Defendants. The names, ARIEL GONZALEZ, JOHN AND JANE DOES “1-10” are fictitious and are meant as placeholders for the Police Officers who falsely arrested and subjected Plaintiffs to excessive force.

**PRELIMINARY STATEMENT**

45. That on November 18, 2022, and at all times herein mentioned, Defendant **CITY OF NEW YORK** was, and still is, a municipal corporation.

46. That on March 6, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiffs demands for adjustment thereof was duly served on the Plaintiffs behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

47. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

48. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the constitution of the State of New York, for the violations of their civil rights and the deprivations to his liberties, as enumerated and promulgated by the Fourth and Fourteenth Amendments to the Constitution of the United States, as well as the laws and constitution of the State of New York.

49. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, together with such other and further relief as this Court may deem just and proper.

50. On, or about, November 18, 2022, at approximately 6:00 p.m., Plaintiff, Mr. Rodriguez, was inside a Target Store located at 700 Exterior Street, County of Bronx, State of

New York, when defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, illegally searched, seized, detained and arrested him.

51. On said date and time, Mr. Rodriguez was inside a Target Store located at 700 Exterior Street, County of Bronx, State of New York, when Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, aggressively approached, assaulted, questioned, and illegally detained Mr. Rodriguez.

52. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

53. As a result, Plaintiff was caused to be unlawfully, involuntarily, and continuously detained by defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, until his release from physical custody when said defendants ended their illegal search.

54. At all times relevant hereto, Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.

55. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, engaged in a conspiracy to falsely arrest Mr. Rodriguez by personally conferring with each other regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence, as well as the manner and means by which said fabrications could be used to deprive Plaintiff of his liberty and violate his civil rights.

56. Plaintiff assert that Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, illegally approached, seized, searched, and then falsely arrested him,

due to their discriminatory prejudices against African Americans, their intent to use the instant arrest as leverage against plaintiff or relatives of plaintiff, so that he would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota, and to benefit from increased overtime compensation.

57. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, arrested Plaintiff, because of their racially discriminatory beliefs, which compelled defendants to equate to Plaintiff's ethnic or national origin to criminal guilt or criminal knowledge.

58. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the complained-of stop, searches, assaults, batteries, seizure, arrest, and detention of Plaintiff, even after they were unable to discover any evidence to justify such conduct.

59. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, unlawfully stopped, questioned, searched, seized, arrested, and detained plaintiff, due to Defendants' perception or consideration of Plaintiff's ethnicity or national origin.

60. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, possessed no valid reason to stop, question, search, or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities.

61. Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, subjected Plaintiff to disparate treatment compared to other individuals similarly situated, because defendants did not stop, seize, search, detain, arrest, or accuse any white individuals

who had engaged in activity identical to the kind that resulted in Plaintiff's illegal search and seizure, namely being lawfully present and sleeping in their home.

62. Plaintiff assert that the Defendants, including **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City, NYPD, have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

63. The identities of Defendants **JOHN OR JANE DOES 1-10** are unknown at this present time. However, these Defendants were participants in the false arrest, unlawful search, seizure, and detention of Plaintiff. The identities of Defendants **JOHN OR JANE DOES 1-10** are known exclusively to the Defendants.

64. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD and the City of New York, in addition to their respective policymakers and supervisors.

65. Upon information and belief, the NYPD and City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved, or acquiesced



to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrests without probable cause.

66. Upon information and belief, the NYPD and City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion, or the appropriate amount of force to be used.

67. Defendants' actions, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

68. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

69. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for

employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

70. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**.

71. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

72. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

73. The aforementioned acts of Defendants **ARIEL GONZALEZ and JOHN OR JANE DOES 1-10**, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth and Fourteenth Amendments

to the United States Constitution, as well as the laws and Constitution of the State of New York.

74. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

**FIRST CAUSE OF ACTION  
(ASSAULT and BATTERY)**

75. The plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

76. That at or about the time of the contact described herein, the plaintiff was in imminent apprehension of harmful contact.

77. On November 18, 2022, the plaintiff was intentionally, wrongfully, willfully, maliciously, assaulted, beaten, and battered by the defendants, and was caused to sustain severe and permanent injuries.

78. That by reason of the foregoing, the plaintiff has been damaged in an amount to be determined at the trial of this action, which amount exceeds the jurisdiction of all lower courts.

**SECOND CAUSE OF ACTION  
(NEGLIGENCE)**

79. The plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

80. The defendants were negligent, careless and reckless in their conduct; in holding the plaintiff, in detaining the plaintiff, in causing the plaintiff to sustain injury; in

causing injury to the plaintiff and the defendants were further negligent.

81. That by reason of the foregoing, the plaintiff has been damaged in an amount to be determined at the trial of this action, which amount exceeds the jurisdiction of all lower courts.

**THIRD CAUSE OF ACTION  
(FALSE ARREST AND IMPRISONMENT)**

82. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

83. The defendants are liable for false arrest and false imprisonment to Plaintiff.

84. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**FOURTH CAUSE OF ACTION  
(INFLECTION OF MENTAL & EMOTIONAL DISTRESS)**

85. The plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

86. The defendant's conduct was extreme and outrageous and beyond the bounds of decency, and as such constituted infliction of mental & emotional distress.

87. That by reason of the foregoing, the plaintiff has been damaged in an amount to be determined at the trial of this action, which amount exceeds the jurisdiction of all lower courts.

**FIFTH CAUSE OF ACTION  
(NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS)**

88. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

89. The defendants' conduct were careless and negligent as to the emotional health

of Plaintiff.

90. The defendants are liable for negligent infliction of emotional distress to Plaintiff.

91. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**SIXTH CAUSE OF ACTION  
(EXCESSIVE FORCE)**

92. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

93. The force used by defendants upon the person of the plaintiff as described herein, was excessive, unnecessary, unreasonable and greater than that which was reasonable and prudent under the circumstances.

94. The defendants are thus liable to the plaintiff.

95. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**SEVENTH CAUSE OF ACTION  
(MALICIOUS PROSECUTION)**

96. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

97. The defendants' conduct, in commencing and participating in criminal proceedings against Plaintiff was without reasonable or probable cause and was instituted with actual malice.

98. The defendants are liable for the malicious prosecution of Plaintiff.

99. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the

jurisdiction of all lower courts.

**EIGHTH CAUSE OF ACTION**

**(PURSUANT 42 U.S.C. §1983 VIOLATION OF PLAINTIFF'S CIVIL RIGHTS)**

100. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

101. At all times herein mentioned, the acts of defendants as described herein were under color of law.

102. The acts of defendants towards Plaintiff as described herein were without warrant, authority of law, or any reasonable cause or belief that Plaintiff committed any crime.

103. Such acts constituted a deprivation of Plaintiffs Constitutional rights, liberties and freedoms under color of State law, under 42 U.S.C. § 1983.

104. Said violation of Plaintiffs Constitutional rights caused her personal injury and damage, both physical and mental and severe emotional distress and illness.

105. By reason of the violation of Plaintiffs Constitutional rights, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**NINTH CAUSE OF ACTION**

**(PURSUANT TO 42 U.S.C §1983 FOR ASSAULT AND BATTERY)**

106. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

107. The defendants' assault and battery of Plaintiff was excessive, unwarranted, unnecessary and violent and violated Plaintiffs rights under the Constitution.

108. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**TENTH CAUSE OF ACTION**  
**(PURSUANT TO 42 U.S.C §1983 FOR FALSE ARREST AND IMPRISONMENT)**

109. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

110. The defendants arrested, detained and imprisoned Plaintiff, without warrant, even though they knew or should have known that she was wholly innocent of any crime then and there alleged against her, and thus violated Plaintiffs Constitutional rights.

111. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts

**ELEVENTH CAUSE OF ACTION**  
**(PURSUANT TO 42 U.S.C. §1983 INFLICTION OF EMOTIONAL DISTRESS)**

120. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

121. The defendants' conduct towards Plaintiff was outrageous, excessive, unnecessary and unreasonable, and violated his Constitutional rights.

122. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**TWELVTH CAUSE OF ACTION**  
**(PURSUANT TO 42 U.S.C. §1983 MALICIOUS PROSECUTION)**

123. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

124. The defendants' conduct, in commencing criminal proceedings against Plaintiff was without reasonable or probable cause and was instituted with actual malice without regard for Plaintiffs Civil and Constitutional rights.

125. As a result of such malicious prosecution, the defendants are liable for the violation of Plaintiffs rights.

126. As a result thereof, Plaintiff is entitled to judgment in an amount exceeding the jurisdiction of all lower courts.

**THIRTEENTH CAUSE OF ACTION**

Excessive Force Under 42 U.S.C. § 1983 Against Individual Defendants

127. The above paragraphs are hereby incorporated by reference as though fully set forth.

128. Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

129. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

130. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FOURTEENTH CAUSE OF ACTION**

Deprivation of Rights & Denial of Equal Protection of the Laws Under New York State law

132. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

133. Plaintiff is a member of a racial or ethnic minority and protected class.

134. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.



135. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

136. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

137. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

138. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

139. Defendants did not possess a rational basis, excuse, or justification for applying any laws or statutes against Plaintiff.

140. Accordingly, defendants violated Plaintiff's rights, pursuant to Article I, § 11, of the New York State Constitution, Article VII, § 79-N, of the New York Civil Rights Law and § 296, 13, of the New York Human Rights Law.

141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **FIFTEENTH CAUSE OF ACTION**

Deprivation of Rights & Denial of Equal Protection of the Laws  
Under 42 U.S.C. § 1981 & 1983 Against Individual Defendants

143. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

144. Plaintiff is a member of a racial or ethnic minority and protected class.

145. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

146. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

147. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

148. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

149. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

150. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

151. Accordingly, defendants violated Plaintiff's rights, under the Fourteenth Amendment.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SIXTEENTH CAUSE OF ACTION**

##### **Failure to Intervene Under New York State Law**

154. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

155. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

156. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

157. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SEVENTEENTH CAUSE OF ACTION**

Failure to Intervene Under 42 U.S.C. § 1983 Against Individual Defendants

158. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

159. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

160. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **EIGHTEENTH CAUSE OF ACTION**

Negligent Hiring, Training, Retention & Supervision Under New York State Law

162. The above paragraphs are hereby incorporated by reference as though fully set forth.

163. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

164. Defendant City breached those duties of care.

165. Defendant City placed defendants in a position where they could inflict foreseeable harm.

166. Defendant City knew or reasonably should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

167. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

168. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**NINETEENTH CAUSE OF ACTION**

Municipal "*Monell*" Liability Under 42 U.S.C. § 1983 Against Defendant City

169. The above paragraphs are hereby incorporated by reference as though fully set forth.

170. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

171. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

172. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

173. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

174. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

175. Defendant City's conduct caused the violation of Plaintiff's civil rights, pursuant to Constitution of the United States.

176. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**WHEREFORE**, Plaintiff respectfully request judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;

- d) Awarding Plaintiff reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

**JURY DEMAND**

Plaintiff hereby demand a trial by jury.

DATED: New York, New York  
November 6, 2023



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JOHN K. KOUROUPAS  
GREENBERG & STEIN, P.C.  
Attorney for Plaintiff  
ANTHONY RODRIGUEZ  
360 Lexington Avenue, Suite 1501  
New York, New York 10017  
(212) 681-2535  
File No.: 7426

**ATTORNEY'S VERIFICATION**

**JOHN K. KOUROUPAS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **GREENBERG & STEIN, P.C.**, attorneys of record for Plaintiff, **ANTHONY RODRIGUEZ** I have read the annexed:

**SUMMONS AND VERIFIED COMPLAINT**

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York  
November 6, 2023

  
\_\_\_\_\_  
JOHN K. KOUROUPAS

Index No.  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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ANTHONY RODRIGUEZ,

Plaintiff,

-against-

TARGET CORPORATION (D/B/A TARGET STORES),  
XYZ CORPORATIONS 1-5, and JOHN DOES 1-5, said names  
being fictitious except the same are identified as employers or  
contractors that provided employees to the said defendant  
TARGET CORPORATION dba TARGET STORES and to the  
herein described premises, CITY OF NEW YORK, ARIEL  
GONZALEZ, and JOHN and JANE DOES "1-10"  
Individually and officially in their capacities as police  
officers,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**GREENBERG & STEIN, P.C.**  
*Attorneys for Plaintiff*  
420 Lexington Avenue, Suite 2450  
New York, New York 10170  
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TO: